IndusInd Bank

PERSONAL LOAN – AGREEMENT

THIS PERSONAL LOAN AGREEMENT ("Agreement") is made and executed on this 20 day of 6, 2025 at GIRD ___between **IndusInd Bank Limited**, a company incorporated under the Companies Act, 1956 and banking company within the meaning of Banking Regulation Act, 1949, having corporate identification number L65191PN1994PLC076333 and registered office at 2401, Gen. Thimmayya Road, (Cantonment), Pune – 411 001 and one of its office at IndusInd Bank Limited (Personal Loans Division), Plot No. 57, Road No. 17, PNA House, 3rd Floor, MIDC, Andheri (East), Mumbai - 400 093 and acting through its branch stated in the Key Fact Statement hereto (hereinafter referred to as the "Bank" which expression shall unless the context otherwise requires, include its successors and assigns) of the ONE PART; AND

The Borrower, an Indian inhabitant, whose name and address is stated in the Key Fact Statement hereto and hereinafter referred to as "the Borrower" (which expression shall unless the context otherwise requires, include his/her heirs, executors and administrators) of the OTHER PART.

The Bank and the Borrower are hereinafter, where the context so requires collectively referred to as Parties and individually as Party.

WHEREAS:

The Bank is engaged in banking business and offers various financial services to its customers. The Borrower agrees and declares the due performance and observance of all the clauses, covenants, terms and conditions of this Agreement including other the terms and conditions as may be applicable to the Loan from time to time which shall be intimated to the Borrower either by way of electronic communication or uploading on the Bank's website.

Relying upon the representations made by the Borrower the Bank has agreed to make available the Loan to the Borrower upon the terms and conditions mentioned in this Agreement and the terms and conditions as intimated / uploaded on the Bank's website from time to time.

NOW THEREFORE THIS AGREEMENT WITNESSETH AND THE PARTIES HERETO AGREE AS FOLLOWS:

1. **DEFINITION AND INTERPRETATION-** Personal Loan Term and Conditions means terms and conditions as stipulated in Annexure I. These terms and conditions will be subject to modification from time to time at the sole discretion of the Bank, as will be required due to change in applicable statutes, regulation and Bank's internal policy.

1.2 In this Agreement, singular shall include plural and the masculine gender, the feminine or neuter gender.

1.3 Any term and expression not defined herein, shall have the same meaning as ascribed to such term and expression as mentioned either in the Personal Loan Terms and Conditions or Key Fact Statement and the same are deemed to have been incorporated herein by reference.

1.4 In this Agreement, headings are for convenience only and shall not affect interpretation except to the extent that the context otherwise requires.

1.5 Any reference to Article, Clause shall be deemed to be a reference to an Article, Clause of this Agreement and Key Fact Statement.

1.6 Any reference to any enactment or statutory provision is a reference to it as it may have been, or may from time to time be amended, modified, consolidated or re-enacted.

1.7 The arrangement of Clauses in this Agreement shall have no bearing on their interpretation.

2. **BANK'S AGREEMENT TO LEND AND BORROWERS' AGREEMENT TO BORROW -** 2.1 The Bank agrees, to lend to the Borrower and the Borrower agrees to borrow from the Bank, the Personal Loan as mentioned in Key Fact Statement in the manner and on the terms and conditions mentioned in this Agreement and Personal Loan Terms and Conditions as intimated / uploaded on the Bank's website from time to time.

2.2 The request for disbursal of loan shall be processed only upon completion of the loan processing formality including but not limited to execution of personal loan documentation.

3. **TENOR AND RECALL OF LOAN -** i. This Agreement shall come into force from the Effective Date and shall remain in force as stipulated in the Key Fact Statement. ii. If one or more events specified in the events of default shall occur, then the Bank by a written notice to the Borrower may recall the loan, which will become repayable forthwith. iii. Notwithstanding anything contained herein this Agreement, the Bank reserves the right to recall the loan on demand, without assigning any reason to the Borrower.

4. **INDEMNITY -** The Borrower agrees and undertakes to indemnify and hold the Bank indemnified against all losses, claims, damages, costs and expenses (including attorney's fees) on full indemnity basis which Bank may incur, sustain or suffer by reason of any breach, violation or default of the terms, conditions, representations, warranties and covenants by the Borrower under this Agreement and the Terms and Conditions as may be applicable to the Loan from time to time.

5. **DISPUTE RESOLUTION, GOVERNING LAW AND JURISDICTION -** 1) The Agreement shall be construed and governed in accordance with the laws of India.. 2)The Bank and the Borrower hereby agree that all disputes, differences and/ or claims arising out of or relating to this Agreement shall be referred and adjudicated by the sole arbitrator to be mutually appointed by the Parties. 3) In the event the Bank intend to invoke arbitration proceedings then the Bank shall propose three names from the panel of arbitrators (a list of which is available on the Bank's website) of which the Borrower shall have an option to select one as the sole arbitrator within seven (7) days from the date of receipt of arbitration notice. 4) In case Parties fail to appoint sole arbitrator as stated herein above, the Parties agree that arbitration proceeding shall be conducted in accordance with the Arbitration Rules of the Arbitral Institution of which details are given on the website of the Bank, to which the subject matter of the arbitration shall be referred to. The Arbitral Institution shall independently appoint

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Signature Not Verified
Digitally signed by Ajay Kumar Mishra
Date: 2025.06.20 09:04:04 IST
Reason: Agreement Executed
Location: Madhya Pradesh

Digitally signed by R.Uma[illegible]
INDUSIND BANK LTD
Date: 20-06-2025 08:57:48
Reason: Agreement Executed
Location: GIRD[illegible]

panel of Arbitrators, in accordance with provisions of the Arbitration & Conciliation Act, 1996 (as amended from to time) or any other statutory modification or re-enactment thereof for the time being in force. The Arbitrator would be bound by rules of the Arbitral Institution but in case of its being silent on any counts in this regard, Arbitrator / Arbitral Tribunal shall be empowered to frame its own rules for conducting arbitral proceedings to that extent. 5) The Arbitrator would have the option to conduct the arbitration proceeding electronically (virtual Mode) or physically or by means of hybrid mode. The language of the arbitration proceedings shall be English. The venue of Arbitration proceedings shall be at Mumbai. 6) The award given by such an Arbitrator shall be final and binding on the Parties. In the event of such an Arbitrator to whom the matter has been originally referred, resigns or dies or being unable to act for any reason, the new Arbitrator shall be appointed by the authorities i.e. Parties or Arbitral Institutions, as the case may be, and such new arbitrator shall be entitled to proceed with the reference from the stage at which it was left by his predecessor. 7) The Arbitrator may send notices, claim statement, documents, replies, counters, adjournment, letters, etc. of the arbitration proceeding to registered mobile number of the Borrower and same shall be considered as proper service. 8) In case of any dispute arising out of this Agreement whether during its subsistence or thereafter, cannot be resolved by arbitration, the courts at Mumbai shall have exclusive jurisdiction.

6. ACCEPTANCE: -The Borrower hereby confirms as follows: - i. That the Borrower has read the entire Agreement, which have been filled in their presence and they shall be bound by all the conditions including the material details. ii. That the Borrower unconditionally and irrevocably agrees and undertakes to and shall be bound by the Terms and Conditions as stipulated in Annexure I, which have been read and understood by the Borrower, and shall be deemed to be part and parcel of this Agreement and are deemed to have been incorporated herein by reference. iii. That the Borrower agrees that for evidence purposes in any court of law or before any statutory/regulatory/ adjudicating authority, any paper printouts produced by the Bank from its electronic records shall be final and binding on the Borrower(s) and the Borrower(s) waives any objection it may have for the same being produced by the Bank as proof and in such evidence. iv. That the Agreement, Personal Loan Terms and Conditions as intimated / uploaded on the Bank's website from time to time and other documents have been explained to the Borrower in the language understood by the Borrower and the Borrower has understood the entire meaning of all the clauses. v. That the Borrower agrees that the Agreement shall be concluded and become legally binding from the Effective Date of the Agreement. vi. That the Borrower specifically agrees that at the end of the tenure of the Agreement or on closure and six months thereafter, Bank is at liberty to convert the Agreement to any other suitable electronic or other forms as may be appropriate as per the prevailing law at that point of time including the Bank's option to destroy the Original Agreement after converting it in to an electronic image and preserve the image for the purpose of the reference / verification for production of the same before any Court/Authority including revenue authorities of Central or State Government as the case may be. The Borrower(s) as the case may be, shall not have any objection and shall not dispute the contents of the electronic image of the Agreement or his/her execution thereof The Borrower shall not demand the production of the original physical form at any time after the period stipulated herein. vii. That the Borrower agrees and acknowledges that only direct telephone numbers (not board / general telephone numbers of offices / corporate / employer) will be accepted for registration of "Do not call" request. And that they may receive call(s) from the Bank to verify correctness of the request for registration. They further note that, the Bank may use Borrower contact details to contact them and offer carefully selected products and services from time to time either directly (or) through its agents (or) authorized representatives. That they also note and consent to receive information on product / services etc., for marketing purposes through Telephone / Mobile / SMS / Email (as recorded with the Bank) from the Bank / its authorized agents. viii. That the provisions relating any recourse available to the Bank for the recovery of dues and/ or enforcement of security interest shall survive even after the termination of the Agreement. ix. The Borrower further agrees and acknowledges the receipt of copy of the Agreement.

7. DIGITAL DOCUMENT: This Agreement is published in compliance of and shall be governed by laws of India, including but not limited to (i) the Indian Contract Act, 1872; (ii) the Information Technology Act, 2000, the rules, regulations, guidelines and clarifications framed thereunder; (iii) the Payment and Settlement Systems Act, 2007 and applicable rules, regulations and guidelines made there under. The terms of this Agreement shall be effective upon the Borrower accepting these presents and shall govern the relationship between the Borrower and the Bank for personal loan facility. This Agreement is an electronic record in the form of an electronic contract formed under the Information Technology Act, 2000 and the rules made thereunder and the amended provisions pertaining to electronic documents / records in various statutes as amended by the Information Technology Act, 2000. This Agreement does not require any further physical signature. This Agreement is a legally binding contractual document between the Borrower and the Bank.

IN WITNESS WHEREOF the Parties hereto have hereunto set and subscribed their respective hands the day and the year stated in the Key Fact Statement / Schedule / Disbursement declaration herein above written.

SIGNED AND DELIVERED by the within – named Date:

IndusInd Bank Limited

Mr. / Mrs. / Ms. _____
Name

Signature

Signature Not Verified
Digitally signed by Ajay Kumar Mishra
Date: 2025.06.20 09:04:04 IST
Reason: Agreement Executed
Location: Madhya Pradesh

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INDUSIND BANK LTD
Date: 20-06-2025 08:57:48
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PERSONAL LOAN TERMS AND CONDITIONS – ANNEXURE I

1. Definitions

"Agreement"	means the Personal Loan Agreement, security documents, the Sanction Letter, addendums, agreements, entered/to be entered into by Borrower(s) with or in favor of the Bank for the benefit of the Bank including this Terms and Conditions, and all other instruments, agreements, documents, deeds, undertakings, declarations, indemnities, papers and writings whatsoever (as amended, varied or supplemented from time to time).
"Application Form"	means and include application submitted in the prescribed form by the Borrower(s) to the Bank seeking Loan facility
"Bank"	means IndusInd Bank Limited and includes the Branch office mentioned in the Personal Loan Agreement.
"Branch"	means the Branch of the Bank situated at the place mentioned in the Personal Loan Agreement of the Personal Loan Agreement and through which the Personal Loan is disbursed and shall include any other such other places where the Bank carries out banking business
"Borrower"	the term "Borrower" shall include his/her/their respective heirs, executors, administrators, legal representatives and permitted assigns
"Dues"	means the instalments payable by the borrower as per the terms of the Agreement read and includes Penal Charges,, , expenses, cheque bounce charges, outstation cheque charges, travel expenses, prepayment charges and other charges as may be applicable and levied from time to time and payable by the Borrower on its due date.
"Effective Date"	means the date of execution of the Personal Loan Agreement.
Electronic Clearance Service mandate or ECS" (or) NACH (National Automated Clearing House) or any other similar modes	means the instruction given by the Borrower(s) to his Banker for the electronic transfer of funds in favour of the Bank, for the remittance of the EMI payable under the Agreement
"Equated Monthly Instalment" or "EMI"	shall mean the amount payable every month on such date/s specified in the Key Fact Statement for the term of the Personal Loan by the Borrower to the Bank to amortize the Personal Loan comprising interest and principal, or as the case maybe, only principal or interest.
"Interest Rate"	means the rate at which the Bank shall compute and apply interest on the Personal Loan, as stated in the Key Fact Statement or as maybe amended from time to time by the Bank.
Key Fact Statement	Commercial terms and conditions as provided by the Bank to the Borrower
"Material Terms and Conditions"	means the material terms and conditions of the Agreement , as more particularly set out in **Schedule** /Key Fact Statement.
"Non Performing Asset" – NPA"	means any Loan including interest and /or principal instalment remaining unpaid (overdue) for a period more than 90 days and / or categorized as NPA according to the guidelines issued by Reserve Bank of India from time to time
"Personal Loan" or "Loan"	means the principal amount of Loan sanctioned and disbursed by the Bank to the Borrower (as specified in the Key Fact Statement) in terms of the Personal Loan Agreement and this Terms and Conditions and shall include dues ou

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	there under including interests, costs, charges, expenses and all other amounts due in accordance with this Agreement if the context so requires.
"Penal Charges"	means the penal charges payable by the Borrower upon breach of the Material Terms and Conditions, as more particularly set out in **Schedule** /Key Fact Statement, and as may be notified by the Bank to the Borrower from time to time or as updated on the Bank's website.
"Post Dated Cheques or PDC"	means Cheques for the amount of the Instalment drawn by the Borrower(s) were in favour of the Bank bearing the dates to match the due date of each Instalment towards repayment of EMI's.
"Prepayment or Foreclosure"	means the repayment of the entire Loan even before the maturity or otherwise than in accordance with the Key Fact Statement as per the terms and conditions contained herein and Personal Loan Agreement for such prepayment/foreclosure together with such charges as may be prescribed by the Bank from time to time.
"Prepayment Charges"	means charges levied by Bank for prepayment as specified in the Key Fact Statement of the Personal Loan Agreement.
"Purpose of Personal Loan"	means that the Personal Loan has been availed by the Borrower for the purpose as stated disclosed by the Borrower to the Bank.
"Repayment"	means repayment of the Principal amount of the Loan and interest thereon, including charges, premium, fees or other dues payable in terms of the Agreement to the Bank, and in particular includes amortization of such payment provided for in the Agreement. Explanation: Any repayment / payment of EMI shall be given effect to only when such payment has been realized and the proceeds have been credited to the Bank's account. The burden of proving such credit lies always with the Borrower(s).
"Sanction Letter"	means a letter issued by the Bank conveying the sanctioning of the Loan facility to the Borrower(s) and shall be read in terms of and in conjunction with the Agreement .
"SMA" Special Mention Accounts	as defined by Reserve Bank of India from time to time as an account which are stress accounts wherein the borrower has defaulted towards the Bank his/her timely servicing of debt obligations SMA accounts are categorized as follows: SMA NF, SMA 0, SMA 1 and SMA 2, the Special mention accounts are categorized in terms of overdue period.
"Tax"	means and includes all taxes payable by the Borrower or payable by the Bank on behalf of the Borrower to the Central or State Government including but not limited to Goods and Service Tax (GST), Value Added Tax, Sales Tax, Service Tax, Road Tax, Green Tax, Income Tax etc.

The expressions and meaning contained in "The General Clauses Act, 1897", shall apply wherever the terms and expressions are not specifically defined herein for the purpose of interpretation and /or for giving effect to All terms used in singular shall unless the context requires otherwise, include plural and a reference to one gender shall include all genders.

2. Interests, Fees and Costs

a) The Borrower shall be liable to pay interest on the Personal loan at the rate specified in the Key Fact Statement with monthly rests as per the conditions mentioned here and the and the Personal Loan Agreement. The Bank will inform the Borrower about the variation in the Interest, if any, in due course and the changes shall be prospectively applicable and binding on the Borrower.

b) Interest, which is part of EMI, if not paid on due date, then interest shall be and added to the principal and shall be treated as an advance to the Borrower/s and the Bank shall be entitled to charge interest at the aforesaid rate on the outstanding balances inclusive of interest not paid by the Borrower/s and hence capitalized as aforesaid.

c) The Bank shall be entitled to change the rate of interest and/or rests , as per Reserve Bank of India guidelines and/ or as per policy of the Bank, by sending to the Borrower/s an intimation or publishing in any newspaper, notice board/ bank web site of the Bank its intention to change the rate of interest and/or rests and the Borrower/s shall be deemed to have consented to such change; and the Borrower/s hereby agree/s to pay interest thereafter at such revised rate and/or rests.

d) The interest on the Personal Loan shall accrue from the date of the Bank's disbursement of the Personal Loan to the Borrower and shall be computed:

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i. at such periodicity as stated in the Key Fact Statement;
ii. taking the basis of 365 days in a year/366 days for a leap year and calculated at monthly rests;
iii. At the Interest Rate as stated in the Key Fact Statement or basis effective ROI change as prescribed by the Bank from time to time and applicable on the actual amount outstanding in the account.

e) The Borrower agrees and acknowledges that the Personal Loan shall bear Processing Fees and other fees and charges including but not limited to Interest Tax, Stamp Duty, late payment charges, ECS, administrative charges, costs and such other charges as mentioned in the Key Fact Statement, which the Borrower shall reimburse to the Bank in addition to the Personal Loan and the interest accrued thereon. The Borrower authorizes Bank to deduct Processing Fee, Service Tax + Cess on Processing Fee, Administrative Charges and Insurance Fees etc.

f) The Borrower shall also bear and reimburse separately to the Bank the costs and expenses involved or incurred by the Bank in the recovery of the Personal Loan, if the Personal Loan or any part thereof, when due is not paid by the Borrower.

g) in the event the Borrower holds a Liability Accounts, either singly or jointly, with the Bank, the Bank shall be entitled to debit the liability account or effect premature payment of fixed deposits for recovery of all other amounts due and payable by the Borrower under this Agreement (including but not limited to Interest Tax, Fees, Charges, Stamp Duty, costs and such other charges specified in the Key Fact Statement) to the Borrower's Personal Loan account, if the Borrowers fails to make payments to the Bank in accordance with the Amortization Schedule of the Personal Loan.

h) All amounts in default for payment (i.e. not paid by the Borrower when due to the Bank) including arrears of EMI, interests, fees, charges, taxes and costs will attract Penal Charges at amount (s) specified in the Key Fact Statement.

i) The Borrower is aware that the Key Fact Statement is not exhaustive and can be changed and fresh/new charges can be added to, anytime and from time to time, at the sole and absolute discretion of the Bank and such charges shall be binding on the Borrower.

3. **Mode of Disbursement**

The Bank shall disburse the Personal Loan in the manner given in the Key fact Statement hereto. The Bank shall credit the Personal Loan amount directly to the designated Bank account, details provided by the Borrower in the name of the Borrower to be held with the Bank itself or with any other bank or such bank to which Electronic Debit Instructions are given. In the alternative, the Bank may, at the request of the Borrower, disburse the loan by issuing Pay Order drawn in favour of the Borrower. The Bank may, by notice to the Borrower, suspend or cancel disbursement of the loan, if the loan is not fully drawn within such period, as the Bank may specify from the date hereof

4. **Repayment and Prepayment**

i) Repayment

a) The EMI amount, as mentioned in the Key Fact Statement, shall be arrived at so as to comprise repayment of principal and payment of interest calculated on the basis of the interest rate, periodicity of compounding, periodicity of repayment, periodicity of effecting credits in the account so as to aim repayment of the entire liability under the Personal Loan at the end of its tenor and the Borrower agrees to continue paying EMls until all amounts due under the Personal Loan have been repaid in full to the Bank.

b) The repayment shall be either by way of Post Dated Cheques (PDC) or by Electronic Clearance System Mandate (ECS) or National Automated Clearing House Mandate (NACH) / Standing Instructions (SI) or any other accepted modes of transfer of funds permitted under the Indian banking system, to the Bank on the due dates. The Borrower acknowledges that the strict remittance of the instalments for the repayment of the Loan is an essential condition for the grant of the Loan. The Borrower(s) waives the right to any notice, reminder or intimation prior to presentation of any PDCs'/Mandates issued by him, for realization.

c) The Borrower shall provide to the Bank, such number and amount of Post-dated Cheques (PDCs), drawn in the name of the Bank, as the Bank may intimate to the Borrower, from time to time, with respect to the Personal Loan. Borrower is solely responsible to ensure that such instalment proceeds are credited to the Bank. All costs incurred thereon until such credit shall be to the account of the Borrower. The Borrower shall be solely responsible to ensure prompt and regular payment of the installments irrespective of whether the Borrower has delivered to the Bank the PDCs for all the installments for the entire contract period or few PDCs which covers only a part of the contract period. If any PDC(s) delivered to the Bank by the Borrower is/are lost, destroyed or misplaced, while in custody of the Bank or become non-encashable, the Borrower shall within 3 working days of receipt of intimation of such loss, destruction or misplacement or non-encashment deliver to the Bank such number of cheques as demanded by the Bank.

d) No notice, reminder or intimation will be given to the Borrower regarding his/her obligation to pay the EMI regularly on each due date. It shall entirely be his/her responsibility to ensure prompt and timely payment to the Bank. Any delay or default in payment of any EMI shall make the Borrower liable to pay to the Bank, Penal Charges as mentioned in the Key Fact Statement, besides constituting a default, thereby making all sums under this Agreement due and payable to the Bank forthwith.

e) The Bank shall be entitled to present the PDCs / Mandates issued by the Borrower in its favour and the Borrower agrees and acknowledges that he shall not issue any instructions to the Bank regarding the presentation of the cheque and/or issue any stop payment instructions to his bankers. In case of dishonour of cheque(s) / ECS or NACH mandates, the Borrower shall be liable to be prosecuted under the provisions of Negotiable Instru
Settlements Systems Act read with Indian Penal Code and/ or any applicable law in t

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prejudice to the right of the Bank to recover the outstanding by initiating appropriate legal proceedings. It is agreed and understood between the parties that the Borrower shall be liable to pay such cheque dishonour / bouncing charges as decided by the Bank from time to time.

f) EMIs maybe either fixed or growing; in case of growing EMIs, the indicated EMI shall be the EMI for the first repayment. In case of growing EMI, Bank shall inform the Borrower about growing EMI at the time of sanction and first disbursal or it may be communicated subsequently. Accordingly, Borrower shall be liable to pay growing EMI and shall substitute NACH Mandate/ e-Mandate/ the PDCs or the Standing Instructions, as the case may be.

g) The Bank reserves the right to represent failed NACH Mandate/ eMandate/ PDC/ and similarly re-attempt recovery of amounts overdue thru debit to existing account. In case of Standing Instructions, Bank would recover funds to the extent they are available in the operative account for which the standing instruction has been given to the Bank and can recover the balance from the subsequent credit in the account.

h) Unless otherwise agreed by the Bank, the payment due and payable under the Agreement, made by the borrower would be appropriated by the Bank at its sole discretion towards costs, charges, expenses, incidental charges, Penal Charges , prepayment charges, commitment charges, fees or any such payments receivable by the Bank in the order of priority as it deems fit at its sole discretion.

i) It is agreed and understood by the Borrower that non-presentation of the cheques/mandates by the Bank due to any reason whatsoever will not affect the liability of the Borrower to repay the Loan.

j) The Bank shall not in any way be responsible for delay, omission or neglect in encashment, damage or loss of any cheques (already given or to be given by the Borrower to the Bank in terms hereof) for any reason whatsoever. In other words, the Borrower is responsible for payment of the instalments until the proceeds in respect of the instalments have been credited to the account of the Bank. The Bank may at any time demand proof of realization to the account of the Bank for payment effected by the Borrower and that the Borrower shall provide the same within 5 days from the date of demand.

k) Without prejudice to any other rights and remedies which the Bank may have under the Agreement and/ or under the prevalent law, in the event of any delay by the Borrower in any payment to the Bank under the Agreement, the Bank shall be entitled to charge Penal Charges as described in the Key Fact Statement The Bank is entitled to treat such non-payment as a dispute. The aforementioned Penal Charges would not affect the obligation of strict compliance with repayment being an essential condition for the grant of Loan.

l) Any dispute being raised about the amount due or interest computation will not enable the Borrower(s) to withhold payment of any Instalment.

ii) Manner of Payment

On demand, Borrower, unconditionally, promises to pay IndusInd Bank Limited, or order, the sum of Rupees outstanding together with interest thereon at the rate as mentioned in the Key Fact Statement or such MCLR or other rate which the Bank may fix from time to time in accordance with the directives of the Reserve Bank of India or policy decision of the Bank, for value received. The Personal Loan (including the principal, interest thereon and any other charges, premiums, fees, taxes, levies or other dues payable by the Borrower to the Bank in terms of this Agreement) shall be repayable by the Borrower to the Bank:

a) by way of EMI as mentioned in the Key Fact Statement towards repayment of principal and interest; and
b) by way of EMI as mentioned in the Key Fact Statement towards repayment of principal and interest; and
c) by separate repayments:
   i. towards repayment of Penal Charges , fees, charges, taxes, claims, costs and expenses or
   ii. towards repayment of interest tax as maybe notified by the Bank to the Borrower.

iii) Appropriation of Payments

Notwithstanding the provisions of the Contract Act, 1872 or any other law or any terms and conditions or any directions of the Borrower to the contrary, the Bank and the Borrower agree that the Bank shall have right to appropriate the monies received from the Borrower or any other Person on their behalf, in the following manner:

a) Firstly, towards costs, charges including prepayment charges and other expenses and other monies due and payable or becoming due and payable to the Bank;

b) Secondly, towards Interest, fee or commission due but unpaid to the Bank;

c) Thirdly, towards the principal monies due and payable to the Bank;

d) Fourthly, towards Penal Charges and taxes (if any) applicable with respect thereto, payable to the Bank; and

e) Lastly, towards payment of any other sum due but unpaid to the Bank under this Agreement.

[For Personal Loan to be repaid in non-equated instalment

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In case the Loan becomes NPA or the Loan is in default, the Repayment realized from the Borrower, shall be applied as under:

a. firstly, towards Interest, fee or commission due but unpaid to the Bank; and
b. secondly, towards the principal monies payable to the Bank;
c. thirdly, towards charges Penal Charges and taxes (if any) applicable with respect thereto;
d. Fourthly towards accrued charges (on cash basis);
e. thereafter the balance, if any, shall be available for, and be appropriated to the remaining outstanding indebtedness of the Borrower on any account to the Bank in accordance with the total amount of such other outstanding indebtedness.]****

OR

[For Personal Loan to be repaid in equated instalment

In case the Loan becomes NPA or the Loan is in default, the Repayment realized from the Borrower, shall be applied as under

a) firstly, towards the principal monies payable to the Bank;
b) secondly, towards Interest, fee or commission due but unpaid to the Bank;
c) thirdly, towards charges, Penal Charges and taxes (if any) applicable with respect thereto; and
d) fourthly, charges accrued on cash basis due but unpaid to the Bank; and
e) thereafter the balance, if any, shall be available for, and be appropriated to the remaining outstanding indebtedness of the Borrower on any account to the Bank in accordance with the total amount of such other outstanding indebtedness] ****

**** -*To be retained based on the repayment terms of the personal loan.*

a)

iv) Pre-Payment

The Borrower shall be entitled to prepay the Personal Loan, fully, as per the rules of the Bank, including payment of Prepayment Charges, for the time being in force in that regard after paying at least the number of EMI's as mentioned in Key Fact Statement. It is clarified that the Borrower shall not be entitled for part prepayment of loan during the tenure of the loan. In event of such pre-payment, the Bank shall be revising (either increase or decrease) the Loan tenure without revising the EMI payable. In some circumstances, the Bank at its sole discretion may revise the EMI payable or tenure or both.

The Bank, at its sole discretion levy and recover from the Borrower prepayment charges at the rate mentioned in the Key Fact Statement or as determined by the Policy of the Bank from time to time; on the amount of Loan repaid by the Borrower ahead of the repayment terms.

5. Bank's Rights

The Bank shall:

a) in the event it is unwilling to continue the Personal Loan on account of regulatory or other reasons, have the sole right at any time during the tenor of this Agreement to recall the entire or part of the Personal Loan without assigning any reason thereof;
b) have the sole right to amend at any time and from time to time any of the terms & conditions of this Agreement including but not limited to revising/rescheduling the repayment terms / amount of EMI or any other amounts outstanding thereunder, revision of Interest Rate, Penal Charges, any other charges or fees, periodicity of compounding of interest, method of effecting credit of the repayments, without assigning any reason and notify such change/revision/amendment to the Borrower. The Borrower will be bound by such change/revision and the Borrower agrees that such revision/change/amendment shall become applicable from date of such revision in the records of the Bank;

c) Alteration and Re-scheduling the Repayment: The Bank shall be entitled to re-schedule the repayment of Loan on receipt of request from the Borrower in such manner and to such extent as per the regulatory guidelines and change of interest rates basis RBI guidelines and the repayment will be made by the Borrower as per the said rescheduling notwithstanding anything stated in the Key Fact Statement. The re-scheduling of the Loan repayment shall not affect or alter the other conditions and clauses of this Agreement unless expressly mentioned therein.

d) have the right to inspect books of accounts and other records maintained by the Borrower; and
e) be entitled to disclose any information about the Borrower, his/her account relationship with the Bank and/or any default committed by him/her in repayment of amounts (whether such information is provided by the Borrower or obtained by the Bank itself and whether in form of repayment conduct, rating or defaults) to its head office, other branch offices, affiliated entities, Reserve Bank of India, or such other Credit Information Bureaus like CIBIL etc., its auditors, as the Bank may, in its sole and exclusive discretion, deem fit and proper. The Bank shall also be entitled to seek and receive any information as it deems fit in connection with the Personal Loan and/or the Borrower from any third party; and
f) be entitled to require the Borrower, in the event of the Borrower opting to resign or retire from his current employment prior to the age of superannuation or is discharged or removed from service before such date for any reason whatsoever, to instruct his/her employer to remit the entire dues or termination benefits (the liability account maintained with the Bank.

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g) have the right to store financial data of the Borrower. This includes data which is not kept within accounts of IndusInd Bank Limited.

h) have a right to apply and/or appropriate and/or set-off any credit balance of the Borrower or any monies/assets (including but not limited to property, assets, securities, shares, stocks, and the like) belonging to the Borrower coming in the hands of the Bank towards the repayment of Personal Loan upon occurrence of Event of Default. However, the Bank shall not be obliged to exercise any right given to it herein

i) ensure that digitally signed documents (on the letter head of the RE) viz., KFS, summary of loan product, sanction letter, terms and conditions, account statements, privacy policies of the LSPs/DLAs with respect to borrowers data, etc. shall automatically flow to the borrowers on their registered and verified email/ SMS upon execution of the loan contract/ transactions.

6. Borrower's Representations, Warranties, Covenants, Indemnifications and Undertakings

i) Capacity and Consent

The Borrower hereby certifies and represents that:

a) The Borrower has adequate legal capacity to enter into and execute the Agreement. The Borrower is not restricted in any manner or prevented in any manner under any law, statute, judgment, decree, ruling, contract or otherwise from executing and undertaking the obligations in the manner provided in the Agreement. The Borrower has acquired all the required authorizations, approvals, consents, licenses and permissions required in relation to the Agreement. Upon execution, this Agreement shall be a valid and legally binding commitment of the Borrower enforceable against him in terms of the Agreement.

b) The Borrower(s)/ hereby confirm and certify that all information furnished by him/them herein are true. The Borrower hereby expressly give consent to the Bank to disclose any/all information/s, at any point of time, relating to conduct and operations of the account/s to the Reserve Bank of India and / or any other Agency/ Authority such as Credit Information Bureau (India) Ltd., appointed/designated by Reserve Bank of India/any Statutory Authority or Courts of Law on being called upon to disclose such information in writing or by any order / direction or as the case may be. The Bank without any further notice or intimation to Borrower(s)/ , can disclose and supply any information to the Reserve Bank of India and/or any Agency/Authority appointed by Reserve Bank of India. The Borrower(s), further agree that Reserve Bank of India and/ or any other Authority so appointed can compile such data and/or information and can convey/supply such data and/or information and/or results thereof to Government, Reserve Bank of India, other Banks, and/or Financial Institutions for any reasons whatsoever, for Credit Discipline in Banking Industry in India. The Borrower(s)/Co-borrower(s) expressly waive their right and discharge the Bank and/or Reserve Bank of India and/or any other Authority appointed by Reserve Bank of India from any liability for disclosure and/or use of such information on account of breach of any secrecy clause. Further Bank may on its own or through its agent(s) make references, do deduping / verification / validation / checking enquiries relating to information in the application /agreements / any other related documents submitted by Borrower(s).

c) The Borrower agrees that in case the Borrower commits default in the repayment of the Loan/advance or in the repayment of interest thereon or agreed installment of the Loan on due date(s), or otherwise jeopardize the interest of the Bank in any manner, the Bank will have an unqualified right to disclose or publish the name of the Borrowers as defaulter in such manner and through such medium, as the Bank or Reserve Bank of India in their absolute discretion may think fit.

d) The Borrower expressly recognizes and accepts that the Bank shall be entitled to disclose to any such third parties (including the authorised signatory(ies)/representative(s), Guarantor(s) of the Borrower) all necessary or relevant information pertaining to the Borrower and the Loan for the purpose of collection of installments / interests/ charges / Penal Charges and to perform and execute all acts, deeds, matters and things connected therewith or incidental thereto including sending notices of demand otherwise contacting the Borrower(s) Guarantor(s) of the Borrower and the Borrower hereby consents to such disclosure by the Bank.

e) Notwithstanding the above, in the event of the Borrower committing any act of default and/or the occurrence of any Event of Default, the Borrower expressly accepts and authorizes the Bank and/or any such third party as the Bank may select to contact any third party(ies) (including the authorised signatory(ies), representative(s), Guarantor(s), the adult family members, secretary, accountants etc. of the Borrower) and disclose all necessary or relevant information pertaining to the Borrower and the Loan and the Borrower hereby consents to such disclosure by the Bank (and/or any such third party as the Bank may select). The Borrower further expressly authorises the Bank (and/ or any such third party as the Bank may select) to receive payments or such other security as may be offered by such third parties (including authorised signatory(ies), representative(s), Guarantor(s), the adult family members, secretary, accountants etc. of the Borrower) towards discharge of the Loan.

f) The Borrower further acknowledge that the Bank shall also be entitled to disclose all aforesaid information/ documents etc., pursuant to the order/direction of the Court of law/Tribunal/, any Judicial or quasi-Judicial or Government or statutory authority or to its Head office or to any of its group companies or other banks or housing companies, as and when required.

g) The Bank shall be entitled to exercise this right of disclosure without being required to issue any further notice in this respect to the Borrower(s) and/or to the Guarantor. The Borrower(s) specifically waive the privilege or claim of privacy, privity and/or defamation.

h) The Borrower(s) hereby gives specific consent to the Bank for disclosing / submitting the 'financial information' as defined in Section 3 (13) of the Insolvency and Bankruptcy Code, 2016 ('IBC') read with the relevant under the IBC, as amended and in force from time to time and as specified there under from ti Credit Facilities availed from the Bank, from time to time, to any 'Information Utility' ('IU')

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) of the IBC, in accordance with the relevant regulations framed under the IBC, and directions issued by Reserve Bank of India to the banks from time to time and hereby specifically agree to promptly authenticate the 'financial information submitted by the Bank, as and when requested by the concerned 'IU'.

i) There are no suits, actions or claims pending or are likely to be filed or taken (whether civil or criminal or otherwise) against the Borrower of any nature whatsoever.

ii) Affirmative Covenants

The Borrower hereby represents/warrants to/covenants/undertakes throughout the subsistence of this Agreement, with the Bank that

a) the information provided in the application for the Personal Loan and as contained herein is complete and true in all respects;
b) there are no threatened or pending claims, demands, litigation or liquidation proceedings against the Borrower;
c) the Borrower shall utilize the Personal Loan for the purpose for which it is granted and for no other purpose whatsoever;
d) the Borrower shall repay to the Bank the Personal Loan in accordance with the Repayment Terms mentioned herein;
e) the Borrower shall at all times maintain sufficient balance in the Personal Loan Repayment Borrower's Account to ensure payment of each EMI;
f) any dispute about interest computation shall not entitle the Borrower to withhold payment of an EMI;
g) the Borrower shall provide to the Bank its financial statement and other information and documents concerning his employment, profession, business or utilization of Personal Loan as the Bank may require from time to time;
h) the Borrower shall, within 7 (seven) days of the event, inform the Bank of any likely change in his/her employment and/or residential/office address;
i) the Borrower shall ensure that none of the PDCs issued by him/her are returned dis-honoured for any reason whatsoever and is aware that in such an event Cheque dis-honour charges will be payable by him/her to the Bank as specified in the Key Fact Statement;
j) the Borrower shall maintain, operate and fund the Personal Loan Borrower's Account till the whole of the Loan Amount, together with interest and charges thereon, is received in full by the Bank

iii) Negative Covenants

The Borrower hereby represents/warrants to/covenants/undertakes throughout the subsistence of this Agreement, with the Bank that

a) the Borrower shall not, during the tenure of this Agreement, avail of or obtain any further loan or facility for the same purpose without the prior written consent of the Bank;
b) that the EDI given to the Bank by the Borrower pursuant to this Agreement:
    i. shall not be changed, modified or countermanded without prior written permission of the Bank;
    ii. if not acted upon by the Bank in which the account is maintained for whatever reason, then without prejudice to the rights of the Bank to recall the entire amount outstanding under the Personal Loan, the Borrower shall issue such revised instructions as maybe necessary to ensure payment to the Bank in terms of this Agreement and/or to issue and deliver PDCs for the balance outstanding under the Personal Loan as per Key Fact Statement.
c) shall not stand surety or as guarantor for any third party liability or obligation;
d) shall not leave India for employment or business or long stay or permanently, without first fully repaying the Personal Loan then outstanding, with interest and other dues, including prepayment charges, if any and shall keep himself aware of all the rules of the Bank, as pertaining to the Personal Loan, and in force from time to time;

iv) Other Acknowledgements, Covenants, Indemnifications Undertakings and Warranties:

a) The Borrower undertakes that, if there is a breach of any of the representations or warranties provided hereunder, then, the Borrower shall indemnify the Bank in respect of any reasonable costs and expenses suffered or incurred by the Bank which arises from the event or circumstance giving rise to any claim for breach of representation or warranty or any representation given by the Borrower to the Bank in the Application for the Loan.
b) Borrower undertakes that on clicking on "I Agree" it shall be construed that the Borrower has duly executed this Agreement and accepts all the terms and conditions contained herein and shall not raise any demur or protest in relation to the same. The Borrower is aware that the Bank shall agree to become a party to this Agreement only after satisfying itself with regards to all conditions and details filled by them in the Application for the Loan and this Agreement is in consonance with the Bank's policy.
c) The Borrower understands and acknowledges that internet is not a necessarily a secure means of transmission. The Borrower acknowledges and accepts that such transmission methods involve the risk of possible unauthorized alteration of data, unauthorized usage therefore for whatever purposes and/ or virus attacks. The Borrower agrees to hold the Bank free and harmless from all losses, costs, damages, expenses that maybe incurred by the Borrower due to any errors, delays or problems in transmission or unauthorized/ illegal interception, alteration, manipulation of electronic data, virus attacks/ transmission to the Borrower's system otherwise caused by using Internet as a means for availi
d) The Borrower hereby agrees, acknowledges and confirms that the Borrower is availing of accordance with the terms contained herein entirely at its own risk and consequences.

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7. Events of Default

The Bank may, by a written notice to the Borrower, declare the Personal Loan to have become due and payable forthwith upon the occurrence (in the sole decision of the Bank) of any one or more of the following events:

a) The Borrower fails to pay to the Bank any amount on or before due date and payable (including an EMI) under this Agreement and/or in terms of any other any other Agreements, documents that may be subsisting or that may be executed between the Borrower and the Bank or fails to furnish the PDCs or any other document / agreement as maybe required by the Bank from time to time or if any PDCs are dis-honored or EDI are not acted upon;

b) The Borrower fails to pay to any person other than the Bank any amount on or before due date and payable or any person other than the Bank may demand repayment of the loan or dues or liability of the Borrower to such person ahead of its repayment terms as previously agreed between such person and the Borrower.

c) If default shall have occurred in the performance of any other covenants, conditions, representations, and/or warranties or agreements on the part of the Borrower under the Loan or any other agreement/s between the Borrower and the Bank.

d) If the Borrower makes the default under any credit facility agreement or arrangement with the Bank or any other Bank / Financial Institution / Non-Banking Financial Company / Housing Finance Company and other Bank / creditors and in respect of any credit facility agreement or arrangement with the Bank or its subsidiaries and affiliates, vice-versa.

e) The Borrower resigns, retires or is discharged or removed from the employment he/she was engaged in on the date of this Agreement;

f) Any of the information provided by the Borrower to avail the Personal Loan or any of the Representations and Warranties contained herein being found to be or becoming incorrect or untrue;

g) If there is reasonable apprehension that the Borrower is unable to pay his/her debts or any person other than the Bank commencing proceedings to declare the Borrower insolvent or if the Borrower shall become bankrupt or insolvent or commit act of insolvency;

h) If any distrait or attachment of any assets of the Borrower is effected; and

i) The Bank, for any regulatory or other reasons, being unable or unwilling to continue the Personal Loan, recalls by written notice the Personal Loan and the Borrower fails to repay in accordance with the said notice.

It is clarified that upon occurrence of an Event of Default, the Bank shall be entitled to adopt civil and/or criminal proceedings against the Borrower, including for dis-honour of Cheques under Section 138 of Negotiable Instruments Act. (Or) for rejection of ECS debit instruction under section 25 of payments and settlement systems act 2007.

8. Classification of Accounts as Special Mention Account (SMA) and Non-Performing Asset (NPA)

(a) Upon the occurrence of any payment default under the Facilities, the Bank shall classify Borrower's Accounts in accordance with the prevailing Reserve Bank of India norms and guidelines.

(b) As per the current prevailing guidelines of Reserve Bank of India, accounts are classified as Special Mention Account (SMA) on the following basis:

A.

Loans other than revolving facilities		Loans in the nature of revolving facilities like cash credit/overdraft	
Categories	Basis for classification – Principal or interest payment or any other amount wholly or partly overdue	Categories	Basis for classification – Outstanding balance remains continuously in excess of the sanctioned limit or drawing power, whichever is lower, for a period of:
SMA-0	Upto 30 days		
SMA-1	More than 30 days and upto 60 days	SMA-1	More than 30 days and upto 60 days
SMA-2	More than 60 days and upto 90 days	SMA-2	More than 60 days and upto 90 days

(c) Further, a Loan account is classified as Non-Performing Asset (NPA) where:

(i) interest and/ or instalment of principal remains overdue for a period of more than 90 days in respect of a term Loan;

(ii) the outstanding balance remains continuously in excess of the sanctioned limit/drawing power for 90 days in respect of an overdraft/cash credit.

(d) It is clarified that the Bank shall flag the Accounts as overdue as part of its day-end processes for the Due Date, irrespective of the time of running such processes. Similarly, classification of Accounts as SMA as well as NPA shall be done as part of day-end process for the relevant date and the SMA or NPA classification date shall be the calendar date for which the day end process is run. In other words, the date of SMA/NPA shall reflect the asset classification status of an account at the day-end of that calendar date.

B. Example: If due date of a Loan account is March 31, 2022, and full dues are not received before the Bank runs the day-end process for this date, the date of overdue shall be March 31, 2022. If it continues to remain overdue, then this account shall get tagged as SMA-1 upon running day-end process on April 30, 2022 i.e. upon completion of 30 days of being continuously overdue. Accordingly, the date of SMA-1 classification for that account shall be April 30, 2022. Similarly, if the account continues to remain overdue, it shall get tagged as SMA-2 upon running day-end process on May 30, 2022 and if continues to remain overdue further, it shall get classified as NPA upon running day-end process on June 29, 2022.

9. Assignment & Transfer

a) The Bank shall have an absolute right to sell or transfer (by way of assignment, securitization or othe the Personal Loan in such manner and on such terms and conditions as the Bank may decide at its s

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b) The Borrower expressly agrees, in the event of sale or transfer as aforesaid, to accept such person to whom the Personal Loan is sold or transferred as his/her lender and make the repayment of the Personal Loan to such person in the manner directed by the Bank.

c) The Borrower shall not be entitled to transfer or assign any of his/her rights under this Agreement.

10. Fax/Email/ Online transmission Indemnity

a) The Borrower is aware that transmission of Instructions through Facsimile ("Fax")/ e-mail/ through internet/ online involves a number of risks including fraudulent alterations and incorrect transmissions and absence of confidentiality. However, the Borrower is desirous of providing instructions ("Instructions") to the Bank through Fax and/or e-mail and/or online for various matters under this Agreement including in relation to the Loan and the operation thereof.

b) In consideration of the Bank permitting the same the Borrower hereby irrevocably, jointly and severally agrees, confirms and undertakes with the Bank as under: -

i. The Bank shall be entitled (without being bound to do so) to rely upon the Instructions provided through Fax / e-mail/ through Internet/ online (and believe the same to be genuine), for their any requirements. In case of any question as to what were the Instructions provided or received, the records of the Fax/ e-mail/ through Internet/ online received by the Bank from the Borrower shall be final.

ii. The Borrower shall ensure that the Instructions provided through Fax/ e-mail/ though Internet/ online to the Bank are executed by a person duly authorised in this behalf ("Authorised Person") and the Bank shall not be responsible for conducting any verification in this regard, whatsoever

iii. The Borrower confirms that the Bank shall not be bound to act in accordance with whole or any part of the Instructions as it may appear in the Instruction so conveyed and the same shall be at the Borrower's risk and the Bank shall not be liable for the consequences of any such refusal or omission to act or deferment of action.

iv. The Borrower shall deliver on the same day or on immediate next day to the Bank the original Instructions in writing signed by the Authorised Person with a marking on the top "confirmation of the same". The Bank shall not be required to await receipt of the said instruction in writing before taking any action in connection with the Instructions provided through fax/ e-mail/ through Internet/ online and the non-delivery and non-conformity of such instruction in writing shall not in any manner prejudice to the Bank's right.

11. Bank's right to appoint Agency

i. That the Borrower agrees, understood and acknowledges that the Bank may outsource any or all its services to a Third Party / Agency, in relation to Loan availed by them.

ii. The Borrower expressly recognizes and accepts that the Bank shall subject to Reserve Bank of India regulations, without prejudice to its right to perform such activities itself or through its officers or servants, be absolutely entitled and have full powers and authority to appoint one or more third parties/agencies of the Bank's choice and to transfer and delegate to such third parties the right and authority to process the Loan application and do collection on behalf of the Bank the Installments/interest/other charges due to the Bank under the Agreement and to perform and execute all acts, deeds, matters and things connected therewith or incidental thereto including sending notices of demand otherwise contacting the Borrower at his residence or office; or receiving the cash/cheques/ drafts/mandates from the Borrower (including the authorised signatory(ies)/representative(s) of the Borrower) and giving valid and effectual receipts and discharge to the Borrower.

12. NOTICES

i. Any notice or request required or permitted to be given or made under this Agreement to the Bank or to the Borrower shall be given in writing. All notices sent by Bank to the Borrower shall be deemed to have been received by all the party to whom it is addressed: (a) if given by post (including by ordinary or registered post with acknowledgement due) on the expiration of 3 (Three) days after the same shall have been delivered to the post office; (b) if given by courier on the expiration of 2 (Two) days after the same shall have been handed-over to the courier agency; (c) if given by telegram, on the expiration of 24 (twenty-four) hours after the telegram shall have been delivered to the telegraph office; (d) if delivered personally, when left at the address of the Borrower(s) as aforesaid, and a certificate by an officer of the Bank who sent such notice or communication that the same was so given or made shall be final and conclusive; (e) if given by electronic communication, sent on the electronic communication provided by the Borrower(s) to the Bank.

ii. All notices sent by the Borrower to Bank shall be sent to the communication address of the Bank as mentioned in clause 13 .

13. Communications:

In addition to the conditions as mentioned above, all notices and other communications on the Bank and the Borrower shall be to the following address, respectively:

For Bank	: IndusInd Bank Ltd. (Personal Loans Division), Plot No. 57, Road No. 17, PNA House, 3rd Floor, MIDC, Andheri (E), Mumbai - 400 093
For Borrower	: The correspondence address as updated with the Bank.

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(vi) Electronic Form

Communication in electronic form

It is hereby agreed by and between the Lender and the Borrower that any request, notice, correspondence or any other writing whatsoever (Writing) required or contemplated under this Agreement may be executed and any delivery, offer, acceptance or any other action whatsoever (Action) in respect of this Agreement may be undertaken in electronic form by way of a click wrap /SMS / WhatsApp / post / Email / in-app based or any other electronic means of executing or authenticating transactions (Electronic Form) as and when as per Applicable Law. The Borrower hereby authorizes the bank for any type of aforesaid correspondences in Electronic Form.

For avoidance of doubt, it is clarified that communications in Electronic Form include any Writing or Action undertaken on any technology platform, mobile application or website provided by the bank. Each Party agrees to provide instructions on a mobile application or a website or in accessing or making any transaction as per Applicable Law. Each Party agrees that the use of a key pad, mouse or other device to select an item, button, icon or similar act/action, or to otherwise provide instructions on a mobile application or a website or in accessing or making any transaction regarding this Agreement constitutes a signature, acceptance and agreement as if actually signed in writing.

Each Party confirms that any Writing or Action made or undertaken by the Parties in Electronic Form shall be valid, binding and legally enforceable against such Party and the borrower hereby consents to the same and shall not raise any objection or claim or disclaim any liability under or in relation to the validity or enforceability of a Writing or Action solely on account of it being in Electronic Form.

14. Set Off and Lien

i. Notwithstanding anything contained in the Agreement, the Bank shall have a lien over all the monies/security/ property/assets of the Borrower/ Guarantors if any in the Bank's control and a right of set off against any monies due to the Bank from the Borrower/ Guarantors and to combine all accounts of the Borrower/ Guarantors if any for recovery of the Bank's Dues hereunder.

ii. It is hereby agreed and understood by the Borrower(s) that, in the event the Borrower(s) defaults in payment of the Installments/charges/fees, without prejudice to the right of termination, the Bank shall have the right to set-off all monies, securities, deposits, other assets and properties of the Borrower / Guarantor(s) that is held by the Bank as secured asset, against the amount in respect of which the default has been committed under the Agreement or any other Agreement. For this purpose the Bank can combine all accounts held in the name of the Borrower, and/or Guarantor. iii) The Borrower(s) / Guarantor(s) understand, accept and agree that the Bank is also further entitled to withhold No Objection Certificate (NOC) or No Dues Certificate (NDC) or Loan Clearance Letter for those contracts which are closed, until recovery of overdue amounts in all other contracts, in which the Borrower(s)are one of the Party(ies).

15. **Fair Practise Code**

The Fair Practise Code for the Bank as published on the Bank's website, shall apply to the loan. Copy of Fair Practise Code is as available on Bank's website
https://www.indusind.com/content/dam/regulatoryDisclosure/codeOfCommitment/coc_english.pdf

16. Partial Invalidity

If any provision of the Agreement or the application thereof to any person or circumstance shall be invalid or unenforceable to any extent for any reason including by reason of any law or regulation or government policy, the remainder of the Agreement and the application of such provision to persons or circumstances other than those as to which it is held invalid or unenforceable shall not be affected thereby. Such portion to the extent to which it is invalid or unenforceable alone which is separable, shall be segregated as void /invalid and the balance portion shall be retained and enforced with full force and effect to the fullest extent permitted by law. Any invalid or unenforceable provision of the Agreement shall be replaced with a provision, which is valid and enforceable and most nearly reflects the original intent of the unenforceable provision, in a mutually agreeable manner.

17. Entire Agreement

The Terms and Conditions including the Key Fact Statement and Personal Loan Agreement, along with the documents, letters, annexures executed or to be executed by the Borrower in favour of the Bank pursuant to the Agreement shall constitute the entire agreement between the Parties hereto with respect to its subject matter.

18. **Term and Termination** The Agreement shall come into effect from the date of disbursement of the Loan under the Agreement and shall terminate only upon the Borrower making full repayment to the Bank of the Loan, interest thereon and all other charges and Dues payable by the Borrower to the Bank under the Agreement and as and when the Bank issues no dues certificate/ discharge the lien on the Property to that effect.

19. **Electronic Information:** The Bank may at its sole discretion make available, or discontinue the provision of alerts and other information through electronic media, whether by way of short messaging services ("SMS"), email or other such means, ("Electronic Information") to the Borrower(s)in connection with his / her Loan account. The Borrower(s) acknowledges that the facility as mentioned above, is dependent on the services of the third party service providers and that the Bank neith nor provides any warranty with respect to the quality of the service provided by such third party service pr the timely delivery, accuracy or security of the contents of the Electronic Information. the Bank shall not be

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delays, errors, loss, distortions, interception or misuse of the information by unauthorised persons, during or after the transmission of the Electronic Information to the Borrower(s)and shall not be liable for any non-performance by the third party service providers. The Borrower(s) acknowledges and understands that the Electronic Information will be provided only in India and in case of SMS alerts only to the subscribers of certain select cellular service providers at certain select regions. The Borrower(s) understands and acknowledges that any miscommunication or failure in receipt of any Electronic Information shall not be deemed to be a waiver or modification of the Obligations of the Borrower(s) as per the terms and conditions of the Agreement. The Borrower(s) shall independently verify the authenticity and accuracy of the contents of any Electronic Information from the Bank .

20. Miscellaneous

a) English shall be used in all correspondence and communications between the Parties.

b) No modification or amendment of the terms of the Agreement except to the revision in interest rate and also alteration or re-schedulement of the installments, as provided under the Agreement and no waiver of any of the terms or conditions hereof shall be valid or binding unless made in writing and duly executed by the Bank and the Borrower(s). The Borrower(s) shall execute necessary agreements viz., supplement, top-up, addendum, and additional schedules with the Bank as the case may be, during the tenure of the Agreement or before the issuance of No Objection Certificate or No Dues Letter, whichever is earlier. The Bank shall in its sole discretion may require and insist the Borrower / Co-borrower to furnish additional security and guarantee etc., as may be mutually agreed.

c) Any change in laws, rules, regulations of the government, orders of Supreme Court/High Courts, the terms of the agreement shall be amended, as may be mutually agreed between the parties

d) The Parties agree that in any legal action or proceeding arising out of or in connection with this Agreement, entries made in the Books of Accounts maintained by the Bank shall be prima facie evidence of debt and of all amounts payable, as therein recorded, by Borrower to the Bank;

e) All remedies of Bank under the Agreement whether specifically provided herein or conferred by statute, civil law, common law, custom, trade, or usage are cumulative and not alternative and may be enforced successively or concurrently.

f) The Loan Agreement shall be binding upon and shall inure to the benefit of each party thereto and its successors in title or heirs, administrators, assigns as the case may be.

g) If at any time any provision hereof is or becomes illegal, invalid or unenforceable in law, neither the legality, validity nor enforce ability of the remaining provision hereof, nor the legality, validity or enforce ability of other provisions shall in anyway by affected or impaired thereby.

h) The Parties agree that any delay or omission by the Bank in exercising any of its right, powers or remedies as the lender of the Personal Loan under this Agreement and other documents pursuant hereto shall not impair the right, power or remedy or be construed as its waiver or acquiescence by the Bank.

i) The Parties confirm that the Personal Loan Agreement, Key Fact Statement, this Personal Loan Terms and Conditions and any other documents executed pursuant to this Agreement shall represent one single Agreement between the Parties.

I/We have read, understood and Accept the IndusInd Bank Privacy Policy hosted on the banks website (Privacy Policy: https://www.indusind.com/in/en/personal/privacy-policy.html) and consent myself and/or as the legal guardian of minor to the processing of Personal Data as described in the Privacy policy.

Signature Not Verified
Digitally signed by Ajay Kumar Mishra
Date: 2025.06.20 09:04:04 IST
Reason: Agreement Executed
Location: Madhya Pradesh

Digitally signed by IP address: and Time and Date:

Digitally signed by R.Uma[illegible]
INDUSIND BANK LTD
Date: 20-06-2025 08:57:50
Reason: Agreement Executed
Location: GIRD[illegible]

SCHEDULE CUM DISBURSEMENT DECLARATION

1.	Name of the Borrower	Ajay Kumar Mishra
2.	Place of Agreement	GIRD 2025-06-20T08:56:23.445
3.	Date of Agreement	20-06-2025
Repayment Details		
4.	Mode of Repayment	NACH
5.	Bank & Branch Name	HDFC BANK BANSI PLAZA
6.	Account Number	50100231152358
7.	IFSC Code	HDFC0001468
8.	MICR Code (if ECS)	NA
9.	1 PDC Cheque # (for 1st EMI)	NA
10.	3 Security Cheque #s	NA
11.	Security Cheque Amount 1.(EMI x 3) 2.(EMI x 9) 3.50% of Loan Amount (NA for 12 Month loan)	NA
12.	Date when first installment is due	If the disbursement date is between the 1st to 22nd day of the month, then the date when the first installment is due is on the 4th day of next month. If the disbursement date is between the 23rd day to the last day of the same month, then the date of first installment is due on the 4th day of the next to next month.
Disbursement Details		
13.	Same as Repayment Account	YES
14.	Bank & Branch Name	HDFC BANK BANSI PLAZA

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15.	Account number	50100231152358
16.	IFSC code (If ECS/NACH)	HDFC0001468
17.	NEFT / RTGS / DD Beneficiary name	Ajay Kumar Mishra
18.	Insurance Premium Amount	NA
19.	Insurance Nominee Name	NA
20.	Processing Fee	0.00
21.	Net Loan Amount for Disbursement	228300.00

IN WITNESS WHEREOF the Parties hereto have here into signed the day, month and the year stated in the Key Fact Statement / Schedule / Disbursement declaration herein above written.

Name of Borrower: Ajay Kumar Mishra	Digitally signed through online application

Digitally Signed by: R.Uppily
INDUSIND BANK LTD
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Annex A Key Facts Statement

Part 1 (Interest rate and fees/charges)

Borrower Name - Ajay Kumar Mishra

Address - gole ka mandir,Gird, Gwalior, GIRD, MADHYA PRADESH, 474005

1	**Loan proposal/ account No.**	JP42368940		**Type of Loan**	**Personal Loan**
2	**Sanctioned Loan amount (in Rupees)**			230000.00	
3	**Disbursal schedule** (i) Disbursement in stages or 100% upfront. (ii) If it is stage wise, mention the clause of loan agreement having relevant details			100% Upfront NA	
4	**Loan term (year/months/days)**			48 **Months**	
5	**Instalment details**				

Type of installments	Number of EPIs	EPI (₹)	Commencement of repayment, post sanction
Monthly	48	6756.00	For disbursals taking place before 22nd (11:59:59 p.m.) of any month, EMI date will be 4th of next month. For disbursals taking place after 22nd of any month, EMI date will be 4th of next to next month.

6	**Interest rate (%) and type (fixed or floating or hybrid)**	18.00 **% (Fixed)**
7	**Fee/ Charges**	

		Payable to the RE (A)		Payable to a third party through RE (B)	
		One-time/ Recurring	Amount (in ₹) or Percentage (%) as applicable	One-time / Recurring	Amount (in ₹) or Percentage (%) as applicable
(i)	Processing fees (Incl GST)	One Time	0.00	NA	NA
(ii)	Insurance charges (Incl GST)	NA	NA	One Time	0.00
(iii)	Valuation fees	NA	NA	NA	NA
(iv)	Any other (please specify)	NA	NA	One Time Stamp Duty	1700.00

8	**Annual Percentage Rate (APR) (%)**	18.42
9	**Details of Contingent Charges (in ₹ or %, as applicable)**	
(i)	Penal charges, if any, in case of delayed payment	2% of amount overdue or 100/- whichever is higher (+GST)
(ii)	Other penal charges, if any	NA
(iii)	Payment of cheque/NACH Dishonour Charges	450/- + GST
(iv)	Cheque/ECS/SI Swapping charges	500/- + GST
(V)	Loan Cancellation Charges	1000/- + GST
(vi)	Legal Charges	At Actuals
(vii)	Foreclosure charges, if applicable	5% of Principal Outstanding + GST post payment of 1st EMI to 11 EMIs. 4 % of Principal Outstanding + GST after payment of 12 EMIs. * 4% **FC Charges + GST will be applicable as per above matrix where customer does not closes from own funds.**
(viii)	Charges for switching of loans from floating to fixed rate and vice versa	NA
(ix)	Any other charges (please specify)	NA

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Part 2 (Other qualitative information)

1	Clause of Loan agreement relating to engagement of recovery agents	Clause 11 "Bank's right to appoint Agency" of Terms and Conditions of Personal Loan
2	Clause of Loan agreement which details grievance Redressal mechanism	https://www.indusind.com/content/dam/regulatoryDisclosure/grievance Redressal/grievance-redressal-mechanism.pdf
3	Phone number and email id of the nodal grievance Redressal officer	Phone Number - (022) 6155 3705 Link to raise complaint- https://www.indusind.com/in/en/personal/grievance-redressal.html
4	Whether the loan is, or in future maybe, subject to transfer to other REs or securitisation (Yes/ No)	Yes
5	In case of lending under collaborative lending arrangements (e.g., co-lending/ outsourcing), following additional details may be furnished:	
Name of the originating RE, along with its funding proportion	Name of the partner RE along with its proportion of funding	Blended rate of interest
NA	NA	NA
6	In case of digital loans, following specific disclosures may be furnished:	
(i) Cooling off/look-up period (The Borrower can, within the cooling-off/lookup period, exit the loan by paying the principal and the proportionate APR without any penalty)		7 calendar days from the date of loan Disbursement
(ii) Details of LSP acting as recovery agent and authorized to approach the borrower		https://www.indusind.com/content/dam/indusind-corporate/Other/collection-agencies/CollectionAgencyList.pdf

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Annex B

Illustration for computation of APR for Personal loans

Sr. No.	Parameter	Details
1	Sanctioned Loan amount (in Rupees) (Sl no. 2 of the KFS template - Part 1)	230000.00
2	Loan Term (in years/ months/ days) (Sl No.4 of the KFS template - Part 1)	48 months
a)	No. of instalments for payment of principal, in case of non-equated periodic loans	NA
b)	Type of EPI Amount of each EPI (in Rupees) and nos. of EPIs (e.g., no. of EMIs in case of monthly instalments) (Sl No. 5 of the KFS template - Part 1)	Fixed 6756.00 Rs. #48
c)	No. of instalments for payment of capitalised interest, if any	NA
d)	Commencement of repayments, post sanction (Sl No. 5 of the KFS template - Part 1)	For disbursals taking place before 22nd (11:59:59 p.m.) of any month, EMI date will be 4th of next month. For disbursals taking place after 22nd of any month, EMI date will be 4th of next to next month
3	Interest rate type (fixed or floating or hybrid) (Sl No. 6 of the KFS template - Part 1)	Fixed
4	Rate of Interest (Sl No. 6 of the KFS template - Part 1)	18.00 %
5	Total Interest Amount to be charged during the entire tenor of the loan as per the rate prevailing on sanction date (in Rupees)	90778.00
6	Fee/ Charges payable (in Rupees)	1700.00
A	Payable to the RE (Sl No.7A of the KFS Template-Part 1)	0.00
B	Payable to third-party routed through RE (Sl No.7B of the KFS template - Part 1)	1700.00
7	Net disbursed amount (1-6) (in Rupees)	228300.00
8	Total amount to be paid by the borrower (sum of 1 and 5) (in Rupees)	320778.00
9	Annual Percentage rate- Effective annualized interest rate (in percentage) (Sl No.8 of the KFS Template-Part 1) (Computed on net disbursed amount using IRR approach and reducing balance method)	18.42
10	Schedule of disbursement as per terms and conditions	Detailed schedule given below
11	Due date of payment of instalment and interest	4th of every month

[1] There may be a difference in repayment amount calculated from the total of instalments given under the detailed repayment schedule vis-à-vis the sum of loan amount, Interest charges and other up-front charges as mentioned under (v) due to rounding off the instalment amount under the detailed repayment schedule.

Disclaimer - The values displayed here are indicative. The final Key Fact Statement (KFS) will be shared as part of Welcome Letter which shall be sent to you post-loan disbursal.

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Annex C

Illustrative Repayment Schedule under Equated Periodic Instalment for the hypothetical loan illustrated in Annex B

Instalment No.	Outstanding Principal (in Rupees)	Principal (in Rupees)	Interest (in Rupees)	Instalment (in Rupees)
1	230000.0	5168.0	1588.0	6756.0
2	224832.0	3319.0	3437.0	6756.0
3	221513.0	3370.0	3386.0	6756.0
4	218143.0	3529.0	3227.0	6756.0
5	214614.0	3475.0	3281.0	6756.0
6	211139.0	3632.0	3124.0	6756.0
7	207507.0	3584.0	3172.0	6756.0
8	203923.0	3638.0	3118.0	6756.0
9	200285.0	3990.0	2766.0	6756.0
10	196295.0	3755.0	3001.0	6756.0
11	192540.0	3907.0	2849.0	6756.0
12	188633.0	3872.0	2884.0	6756.0
13	184761.0	4023.0	2733.0	6756.0
14	180738.0	3993.0	2763.0	6756.0
15	176745.0	4054.0	2702.0	6756.0
16	172691.0	4201.0	2555.0	6756.0
17	168490.0	4180.0	2576.0	6756.0
18	164310.0	4325.0	2431.0	6756.0
19	159985.0	4310.0	2446.0	6756.0
20	155675.0	4376.0	2380.0	6756.0
21	151299.0	4667.0	2089.0	6756.0
22	146632.0	4514.0	2242.0	6756.0
23	142118.0	4653.0	2103.0	6756.0
24	137465.0	4654.0	2102.0	6756.0
25	132811.0	4791.0	1965.0	6756.0
26	128020.0	4799.0	1957.0	6756.0
27	123221.0	4872.0	1884.0	6756.0
28	118349.0	5005.0	1751.0	6756.0
29	113344.0	5023.0	1733.0	6756.0
30	108321.0	5153.0	1603.0	6756.0
31	103168.0	5179.0	1577.0	6756.0
32	97989.0	5258.0	1498.0	6756.0
33	92731.0	5430.0	1326.0	6756.0
34	87301.0	5421.0	1335.0	6756.0
35	81880.0	5545.0	1211.0	67
36	76335.0	5589.0	1167.0	67

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37	70746.0	5709.0	1047.0	6756.0
38	65037.0	5762.0	994.0	6756.0
39	59275.0	5850.0	906.0	6756.0
40	53425.0	5966.0	790.0	6756.0
41	47459.0	6030.0	726.0	6756.0
42	41429.0	6143.0	613.0	6756.0
43	35286.0	6217.0	539.0	6756.0
44	29069.0	6312.0	444.0	6756.0
45	22757.0	6442.0	314.0	6756.0
46	16315.0	6507.0	249.0	6756.0
47	9808.0	6611.0	145.0	6756.0
48	3197.0	3197.0	49.0	3246.0

Disclaimer:
If the disbursal date is between 23rd of the month to 3rd of next month, the interest for this period will be recovered in last EMI and that can be higher than normal EMI. This will be part of final KFS which will be sent as part of welcome letter post loan disbursal.

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